

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1408

By: Grego

AS INTRODUCED

An Act relating to schools; requiring certain transfer students to file a notice of intent; mandating notice filing timeline; requiring State Department of Education to create notice form; requiring notice form to be available online and in schools; clarifying language; excluding certain students from school dropout report; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. A parent or legal guardian of a student attending a public school within the state who intends to transfer the student to a private school or home school, or chooses to educate their child through other means of education as provided in Section 4 of Article 13 of the Oklahoma Constitution, shall file a Notice of Intent with the school district the student currently attends or most recently attended.

1 B. The Notice of Intent described in subsection A of this
2 section shall be filed with the applicable school district within 10
3 days of beginning instruction at a private school or home school in
4 the state or within 10 days of beginning other means of education.

5 C. The State Department of Education shall adopt a standard
6 Notice of Intent form to be provided on the State Department of
7 Education's website in a conspicuous place for parents and legal
8 guardians to use. Each public school shall have said forms
9 available in their main office for parent and legal guardian use.

10 SECTION 2. AMENDATORY 70 O.S. 2021, Section 35e, is
11 amended to read as follows:

12 Section 35e. A. It shall be the duty of the superintendent,
13 principal or head teacher of each public or private middle, junior
14 high and high school accredited by the State Department of Education
15 in the State of Oklahoma to notify the Department annually as
16 scheduled by the Department of the name, address, race and age of
17 any pupil dropping out from the school during the preceding year.
18 The report shall be made on forms prescribed and furnished by the
19 Department.

20 B. The State Board of Education shall cause these statistics of
21 school dropouts to be tabulated by grade and school district.
22 Information of school dropouts shall be made available to the
23 Oklahoma Department of Career and Technology Education, the Bureau
24 of Indian Affairs, the Military Department of the State of Oklahoma

1 for use in the youth educational programs provided by the Department
2 and the State Department of Health.

3 C. The State Department of Education shall make an annual
4 report to the Legislature prior to the convening of each regular
5 session thereof of information received and tabulated pursuant to
6 this section.

7 D. For the purposes of this section, "school dropout" means any
8 student who is under the age of nineteen (19) and has not graduated
9 from high school and is not attending any public or private school
10 or is not otherwise receiving an education pursuant to law for the
11 full term the schools of the school district in which the student
12 resides are in session. School dropouts shall not include students
13 whose parents or legal guardians have filed a Notice of Intent with
14 the applicable school district.

15 SECTION 3. This act shall become effective July 1, 2025.

16 SECTION 4. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

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